

SENATE No. 1341

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Department of Unemployment Assistance Advisory Council.

PETITION OF:

NAME:

Patricia D. Jehlen

DISTRICT/ADDRESS:

Second Middlesex

SENATE No. 1341

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 1341) of Patricia D. Jehlen relative to the Department of Unemployment Assistance Advisory Council. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1853 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Department of Unemployment Assistance Advisory Council.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9N of chapter 23 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the first paragraph and inserting in place
3 thereof the following paragraph:-

4 (a) There shall be in the department of unemployment assistance, but not subject to the
5 control of the director of unemployment assistance, a state advisory council of 7 members
6 appointed by the governor, including at least 1 member from each list of nominees submitted by
7 the following organizations: the Massachusetts AFL–CIO, the Massachusetts Building Trades
8 Council, and the Massachusetts Legal Assistance Corporation. Two members shall be persons
9 who, because of their vocations, employments, occupations or affiliations, can be classed as
10 employers. The governor shall from time to time designate one of the members as chairman. Of

11 the members originally appointed, 2 members shall be chosen for a term of 4 years, and the
12 remaining members shall be chosen for a term of 6 years; and thereafter as their terms expire the
13 governor shall appoint members for terms of 6 years. Vacancies shall be filled by appointment
14 by the governor, with like advice and consent, for the remainder of the unexpired term, except
15 that if the governor fails to fill such vacancy within 60 days after such vacancy exists, such
16 vacancy shall be filled forthwith by a majority vote of all the remaining members of the advisory
17 council for the remainder of the unexpired term. All members shall serve until the qualification
18 of their respective successors. The council shall meet at least 6 times a year. Each of the
19 members of the council shall receive the sum of \$100 as compensation for each day's attendance
20 at meetings of the council; provided, that the total amount paid hereunder to any such member
21 shall not exceed \$3,000 in any calendar year. Members of the council shall receive their traveling
22 and other necessary expenses incurred in the performance of their duties. The director of
23 unemployment assistance shall provide for the council suitable meeting quarters and such
24 clerical and other assistance as the council may deem necessary. Said offices and the incumbents
25 thereof shall not be subject to chapter 31 and the rules and regulations made thereunder.

26 SECTION 2. Said section 9N of said chapter 23 is hereby further amended by inserting
27 after the last paragraph the following paragraph:-

28 (c) The state advisory council shall be subject to sections 18 through 25, inclusive, of
29 chapter 30A of the general laws.

30 SECTION 3. Section 62 of chapter 151A of the General Laws is hereby amended by
31 striking out, in line 28, the words "commerce and labor", and inserting in place thereof the
32 following words:- labor and workforce development